

Reclaim Policy Action Framework

A step-by-step blueprint for mass, lawful pressure on data privacy, surveillance, data brokers/aggregators, ALPRs (e.g., Flock), and dynamic pricing.

0) Executive Summary

Mission: Win enforceable protections against commercial/governmental surveillance and algorithmic price discrimination through synchronized civic action, public records campaigns, local ordinances, and strategic litigation.

Core levers: (1) Transparency mandates, (2) Consent & data minimization, (3) Auditability, (4) Remedies & private right of action, (5) Procurement constraints on harmful vendors, (6) Anti-dynamic pricing discrimination rules.

90-day outcomes: Introduce at least 3 city ordinances, publish 1 public ALPR/FOIA dashboard, submit ≥ 500 public comments on an active federal/state rulemaking, launch 2 coordinated opt-out drives, and recruit 20+ allied orgs.

1) Policy Planks (Model Language and Objectives)

1.1 Data Broker Registration & Conduct Act (DBRCA)

Objective: Force sunlight on data markets and curb resale. - Mandatory public registration for any entity brokering personal data. - Source provenance disclosure; clear opt-out APIs; 30-day deletion SLA. - Ban on sensitive inferences (health status, pregnancy, religion, immigration, union activity) without explicit consent. - Annual independent algorithmic risk assessment filed with AG. - **Enforcement:** AG + private right of action; statutory damages per violation; whistleblower protections.

1.2 ALPR & Surveillance Accountability Ordinance (municipal)

Objective: Constrain Flock/Fog Reveal/ALPR use. - Warrant or exigency requirement for searches beyond hot-list hits. - 14–30 day retention default; sharing only via MOU disclosed publicly. - Public quarterly use logs (queries, purpose, outcomes, external shares). - Vendor contract transparency; indemnification barred; per-hit cost zveiling. - **Sunset:** 2-year automatic expiry unless renewed by vote after hearing.

1.3 Dynamic Pricing Transparency & Fairness Act

Objective: End covert algorithmic price discrimination. - Mandatory notice when individualized pricing or ranking is used. - Prohibit use of protected-class proxies and data-broker profiles for pricing. - Consumer right to a “plain-price” (non-personalized) option. - Periodic third-party fairness audits; publish high-level findings. - **Enforcement:** AG + private suits; disgorgement for unjust enrichment.

1.4 Government Procurement “Data-Safe” Standard

Objective: Align public money with public values. - No contracts with vendors who: (a) sell citizen data, (b) lack deletion API, (c) refuse audits. - Require model cards & impact assessments for any AI affecting rates, eligibility, or public safety decisions.

1.5 Subsidy & Tax-Abatement Guardrails for AI/Data Centers (state/local)

Objective: Stop blank-check incentives. - Pre-grant cost-benefit: water/energy use, local rates, jobs, community benefits agreement. - Annual public reporting; clawbacks for noncompliance.

2) 30/60/90-Day Action Plan (with Roles & Artifacts)

Day 0–7: Stand-up & Targeting

- **Mapping:** Identify 10 priority cities/counties (ALPR use, receptive council, activist density).
- **Coalition:** Recruit privacy orgs, PTA groups, labor locals, faith leaders, small-biz associations.
- **Roles:**
 - *Policy Lead:* adapts model ordinances/acts.
 - *Records Lead:* runs FOIA/Open-records blitz.
 - *Legal Lead:* drafts demand letters, tracks case law.
 - *Comms Lead:* press, social, petitions, speakers bureau.
 - *Data Lead:* builds the Surveillance Transparency Portal.

Artifacts: Stakeholder map; city target sheet; shared drive; branded pitch deck; signup form.

Day 8–30: Transparency Offensive

- **FOIA Blitz:** Submit standardized requests to police, sheriff, DOT, schools for:
 - ALPR/Flock contracts, policies, query logs, data-sharing MOUs, retention periods, audits.
 - Use of Fog Reveal, geofence warrants, phone extraction tools, social-media monitoring.
- **Procurement Sunshine:** Request all current IT/security vendor contracts and data processing addenda.
- **Portal Launch:** Publish a live map and repository of responses; track denials/appeals.
- **Ordinance Drafting:** Tailor the ALPR ordinance and DBRCA language to top 3 cities; line up sponsors.

Artifacts: FOIA templates (email + portal), tracking spreadsheet, appeal templates, portal site (Git or Airtable), ordinance one-pagers.

Day 31–60: Policy Filings & Public Pressure

- **Introduce Ordinances:** Coordinate same-week filings in at least 3 municipalities; hold pressers with local stories.
- **Public Comment Drives:** Identify one active federal/state docket (privacy/AI/dynamic pricing). Ship a comment kit with: summary, cites, personal-impact prompts, and submission steps.

- **Business Council:** Enlist local merchants to endorse the Dynamic Pricing Act’s “plain-price” option.
- **Opt-Out Events:** Run “Data Detox Weekends” (libraries, churches): walk people through data-broker opt-outs & ad-ID resets; collect anonymized metrics.

Artifacts: Comment template packets; sign-on letters (orgs & businesses); social media toolkit; earned-media op-eds.

Day 61–90: Escalation & Litigation Readiness

- **Hearings:** Turnout scripts, testimony prep, fact sheets. Pair lived-experience witnesses with counsel.
- **Model Contracts:** Present Data-Safe procurement standard to school boards & counties; ask for resolutions.
- **Legal Options:** Draft demand letters to non-responsive agencies; identify plaintiffs for state UDAP/ unjust enrichment claims against data brokers/dynamic pricing abuses.
- **KPIs Review & Next-Wave Cities:** Publish a 90-day scorecard; announce cities for phase two.

Artifacts: Hearing kits; resolution templates; demand letters; litigation memo; 90-day report PDF.

3) Toolkits & Templates (Ready to Use)

3.1 FOIA/Open-Records Packet

- Request letters covering ALPR/Flock contracts, policies, retention, query logs, external sharing, and reproductive-care-related queries; fee waivers; expedited processing.
- Appeal templates for: undue burden, trade secret, ongoing investigation.
- Spreadsheet to track status, deadlines, and outcomes; mail-merge for batch requests.

3.2 Municipal Ordinance Templates (editable)

- **ALPR Accountability Ordinance**
- **Data Broker Registration & Conduct Ordinance** (local power where state AG absent)
- **Dynamic Pricing Notice & Plain-Price Ordinance** (consumer protection angle)
- **Data-Safe Procurement Resolution** (school board, city, county)

3.3 Public Comment Kits

- Short explainer; harm taxonomy (privacy, speech, discrimination, economic injury); legal hooks; 3 sample comments (resident, small biz, technologist); filing calendar & how-to.

3.4 Litigation Starter Pack

- Theory memos: state UDAP, unjust enrichment, invasion of privacy, state constitutional claims; standing strategies; evidence checklists; preservation letters.

3.5 Organizing Assets

- Sign-on letters; petition text; door hangers; phonebank scripts; event checklist; earned-media pitch emails; design assets.

4) Surveillance Transparency Portal (Data & Engineering)

Purpose: One public page per agency/vendor with contracts, query stats, MOUs, and retention rules.

MVP spec: - Stack: Airtable/Google Sheets backend → simple static site (Eleventy/Next) or no-code portal. - Fields: Agency, Vendor, Contract term, Cost, Retention, # Queries/Yr, # Warrantless queries, External shares, Policy URL, Contacts, Last updated. - Upload all FOIAs; tag with city/county; map pins; CSV export. - Add “Take Action” buttons (petition, hearing dates, email officials).

Maintainers: Data Lead + volunteer “city editors.”

5) Coalition & Power Map

Allies: ACLU/EPIC-style orgs; public defenders; press-freedom groups; librarians; domestic violence advocates (location privacy); school parents; labor locals; faith coalitions; small-biz alliances; disability rights groups.

Unusual bedfellows: Gun-rights orgs (surveillance skepticism), fiscal conservatives (anti-subsidy), technologists (auditability), renters’ unions (algorithmic screening), indie retailers (plain-price).

Targets: City council committee chairs; sheriffs/police chiefs; procurement officers; school boards; state AG consumer divisions; PUC/PSC (for data-center/utility rules).

6) Communications Plan

Narrative frames: - “Your data is a paycheck you never got.” (unjust enrichment) - “Plain price, not spy price.” (dynamic pricing) - “Public money, public standards.” (procurement) - “Safety with warrants, not dragnets.” (ALPR)

Cadence: Weekly releases from FOIA findings; real-person vignettes; dashboard milestones; countdowns to hearings; coalition endorsements.

Channels: Local TV/radio; op-eds; neighborhood Facebook groups; Reddit subs; union newsletters; PTA emails; faith bulletins.

7) Metrics & KPIs

- **FOIA requests filed; response/appeal rates; documents published.**
- **agencies disclosing ALPR query logs; average retention days; # external shares.**
- **ordinances introduced/passed; # procurement resolutions adopted.**
- **public comments submitted; # unique constituents.**
- **opt-outs completed; # businesses endorsing plain-price.**

- Media mentions; site traffic; volunteer signups.

8) Risk, Compliance, and Ethics

- All actions lawful and nonviolent; no evasion of plates/ALPR; no computer misuse.
 - Defamation guardrails: vet claims; stick to documents; provide right of reply.
 - Privacy by design in the portal (redact PII; publish aggregates).
 - Accessibility and language access for all materials/events.
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9) Appendices (Editable Text Blocks)

A) FOIA Request (ALPR/Flock) — Short Form

Pursuant to [STATE LAW], I request: (1) all current/past contracts, SOWs, amendments, and invoices with [VENDOR]; (2) policies governing ALPR/analytics use, retention, and data-sharing; (3) query logs from [DATE-DATE] including requester, stated purpose, and whether accessed/shared externally; (4) training materials and any audits. I request a fee

waiver as the records are in the public interest. Please produce on a rolling basis in electronic form.

B) City Ordinance — ALPR Accountability (Key Sections)

- **Definitions** (ALPR system, query, hot-list hit, exigent circumstances).
- **Authorization & Policy** (ordinance required; public policy publication).
- **Use Limits** (case numbers; warrant/exigency; audit trails; officer training).
- **Retention** (≤ 30 days w/out case link; purge schedule).
- **Transparency** (quarterly reports; open data schema).
- **Contracts** (no indemnification; no vendor secrecy clauses; city audit rights).
- **Enforcement** (civil penalties; suppression for violations; private right of action).

C) Dynamic Pricing Notice — Sample Municipal Text

- “Any retailer using individualized pricing must provide in-store and online notice and a non-personalized ‘plain price’. Use of protected-class proxies is prohibited. Annual independent audit required; summary posted on city site.”

D) Public Comment Template (Resident)

1. **Hook:** Local experience with unfair pricing/surveillance.
2. **Evidence:** Cite harms, discrimination risks, consumer confusion.
3. **Ask:** Adopt transparency, audit, plain-price, and enforcement provisions.
4. **Standing:** Explain personal impact; sign with city/zip.

E) Demand Letter (Agency Non-Compliance)

- Timeline of requests; legal duty to disclose; proposed cure (produce by X date, or we will petition court); request for fee waiver decision; preservation.

10) Next Steps — Today

- Confirm 3 pilot cities; pick ordinance sponsors.
- Spin up the portal skeleton and FOIA tracker; assign “city editors.”
- Schedule Data Detox Weekend #1; draft comment kit for the next open docket.
- Issue a coalition launch statement with top 5 demands and a 90-day scoreboard.

This framework is designed to be modular. We can clone the packet per city, update templates for state law, and ship. Ready to operationalize.